

§ 312.2. Issuance of a warrant. 1. The court may issue a warrant, directing that the respondent personally or other person legally responsible for his or her care or, if such legally responsible person is not available, a person with whom he or she resides, be brought before the court, when a petition has been filed and it appears that:

- (a) a summons cannot be served; or
- (b) such person has refused to obey a summons or family court appearance ticket; or
- (c) the respondent or other person is likely to leave the jurisdiction; or
- (d) a summons, in the court's opinion, would be ineffectual; or
- (e) a respondent has failed to appear.

2. Upon issuance of a warrant due to the respondent's failure to appear for a scheduled court date, the court shall adjourn the matter to a date certain within thirty days for a report on the efforts made to secure the respondent's appearance in court. The court may order that the person legally responsible for the respondent's care or, if such legally responsible person is not available, a person with whom the respondent resides, appear on the adjourned date. Upon receiving the report, for good cause, the court may order further reports and may require further appearances of the person legally responsible for the respondent's care or, if such person legally responsible is not available, a person with whom the respondent resides. Upon receiving the initial or any subsequent report, the court shall set forth in writing its findings of fact as to the efforts, if any, made up to that date to secure the respondent's appearance in court.

3. A juvenile who is arrested pursuant to a warrant issued under this section must forthwith and with all reasonable speed be taken directly to the family court located in the county in which the warrant had been issued, or, when the family court is not in session, to the most accessible magistrate, if any, designated by the appellate division of the supreme court in the applicable department. If a juvenile is brought before an accessible magistrate, the magistrate shall set a date for the juvenile to appear in the family court in the county in which the warrant had been issued, which shall be no later than the next day the

court is in session if the magistrate orders the juvenile to be detained and within ten court days if the magistrate orders the juvenile to be released. In determining whether the juvenile should be released, with or without conditions, or detained, the magistrate shall apply the criterion and issue the findings required by section 320.5 of this article. The magistrate shall transmit its order to the family court forthwith.